**IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD**
**COURT - 2**

**Item No.223 - CP(CAA)/67(AHM)2022**
**in**
**CA(CAA)/20(AHM)2022**
**Item No. 224 – IA 80 of 2022**

## Proceedings under Section 230-232 Co.Act,2013

**IN THE MATTER OF:**

Dholka Plywood Industries Pvt Ltd **.....Applicant**

**.....Respondent**

**Order delivered on 31/01/2023**

**Coram:**

Dr. Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

**PRESENT:**

| | |
|---|---|
| For the Applicant | : Mr. Subodh Kumar Agrawal, PCA |
| For the Income Tax | : Ms. Ms. Pankti Shah, Adv. |
| For the RD | : Mr. Shiv Pal Singh, Asst. Director |

**ORDER**

**IA 80 of 2022**

Application is filed by the applicant seeking condonation of delay in filing second motion petition. Learned PCA Mr. Agrawal for the applicant states that after all meetings were dispensed with in first motion application, applicant / petitioner complied the order by serving the concerned statutory / regulators which took time, hence, delay. Learned PCA further states that there is no intentional delay. On the request and submission made by Learned PCA, we allow the application and condone the delay in filing second motion petition. Application is allowed and disposed of.

**CP(CAA) 67 of 2022**

Second motion petition filed under Section 230-232 of the Companies Act.

The Petitioner has served Notice(s) to Statutory Authorities and also filed affidavit evidencing service to concerned Authorities.

The petition is admitted.

The Petitioner shall advertise Notice of hearing of this petition in “Financial Express” Ahmedabad Edition and Gujarati translation thereof in “Financial Express” Ahmedabad Edition in vernacular language not less than ten days before fixed date of hearing, calling for objections, if any, on or before the date of hearing.

The Petitioner shall issue notice(s) to following, informing the date of hearing:

1. **Regional Director and the Registrar of Companies** both situated at *RoC* Bhavan, Opp. Rupal Park Society, Behind Ankur Bus Stop, Naranapura, Ahmedabad (380013)**.**
2. **The Official Liquidator** situated at 3rd Floor, Corporate Bhawan, B/H Zydus Hospital, Thaltej, Ahmedabad-380059 Gujarat.
3. **The Income Tax Department** at respective ward officers with details of PAN of all Petitioners Companies and also Office of Principal Chief Commissioner Income Tax, at their present address.

List for hearing on 27.03.2023

-Sd-

**AJAI DAS MEHROTRA**
**MEMBER (TECHNICAL)**

-Sd-

**DR. DEEPTI MUKESH**
**MEMBER (JUDICIAL)**